

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN BERMUDA

INTRODUCTION & FRAMEWORK

When the Government of Bermuda issued a **special development order** in 2007 to let developers raise a luxury resort hotel on the **Southlands** estate — some thirty-eight acres of unspoilt coastal woodland, beach, and quarry gardens in Warwick Parish that a premier himself called "an unspoilt jewel" — Bermudians did not simply accept it. A coalition of environmental and community groups formed and pressed: they lobbied, they made the case for Bermuda's dwindling green spaces, and they held roadside demonstrations with placards that were, for Bermuda, a first. Under that pressure the government brokered a **land swap** — the developers took eighty acres of brownfield land at Morgan's Point for their resort, and Southlands was preserved, becoming, in time, a national park. The win was a swap, not an outright cancellation; it took the better part of a decade; and even a saved place has had to be defended since. But a pristine site slated for a resort became a national park, and the levers that did it can be used again.

The Southlands coalition drew on tools available to communities across Bermuda, a self-governing British territory with a rule-of-law system. The **planning process and its development orders** — including the special development orders that clear big projects — are a place to object, challenge, and hold to account, even after an order is granted; protest, petition, and litigation are lawful. **Conservation and heritage considerations** — endemic species, dwindling open space, historic value — weigh genuinely in planning decisions and are a powerful, evidence-based case. The **National Parks Act and park designation** can secure a saved place with lasting protection, as Southlands gained. And the **courts** are open — judicial review at home, and an appeal that runs ultimately to the Privy Council. But these tools have real limits, and this guide states them plainly. The Southlands win was a **land swap, not a cancellation**: the resort was not stopped, only moved to brownfield land, so a Bermudian win may redirect development rather than end it. It took **years** — from the 2007 order through the 2010 swap, the 2012 acquisition, and the 2017 park designation. And even a saved place needs defending: Southlands as a park has since faced neglect, disrepair, and renewed debate over what "development" within it should mean. So aim for what these tools can genuinely deliver — a treasured place saved, a development redirected, a lasting park protection won and then defended — in an open democracy where the odds are, honestly, favourable.

The Whole Strategy in One Idea

You win here as Southlands did: build an environmental and community coalition, make the public case for Bermuda's dwindling green spaces, use the planning process and the conservation and heritage considerations, demonstrate peacefully where warranted, and press the government toward a redirection and lasting park protection — even after a development order has been granted. The place is saved by moving the deciders, and held by securing park status.

Be Honest About Which Fight You're In

Bermuda is one of the more favourable settings in this guide: a small, open, rule-of-law territory where a coalition genuinely moved the government. But honesty about the harder truths is the first discipline. A Bermudian win may be a swap that redirects development rather than stops it, and a protection that must then be defended against neglect and renewed debate. And it takes years. So aim at the winnable — this treasured place saved, this development redirected, this park secured — and settle in for the long defence

that even a won park requires.

HOW THE SYSTEM WORKS

Who Actually Decides

A Bermuda development runs through several tracks at once, each a place to intervene. The **Government of Bermuda** issues the development orders and brokers the outcomes — it is the decider a coalition and a public must move, as the Southlands campaign moved it. The **planning authorities and development orders** set what may be built and are a place to object and challenge. The **National Parks Act and the parks system** can secure a saved place with lasting protection. And the **conservation and heritage considerations** — endemic species, open space, historic value — weigh genuinely in decisions. Map who decides a project's fate, at which level, before spending a week on it.

How a Project Moves — and Where You Jump In

A big project is cleared by planning permission or a special development order. The consultation and objection stages are your first entry point — the moment to document the harm, make the conservation and heritage case, and press for refusal, conditions, or a better alternative. But Southlands proved a fight is not over even after an order is granted: a coalition and a public can still move the government toward a redirection, and then lock in the win through park designation. Beyond it lie the courts.

Follow the Money and the Permissions

Follow the permission: which development order or planning approval clears the project, and where the objection and consultation windows fall. Follow the alternative: whether brownfield or already-developed land could take the project instead, as Morgan's Point took Southlands' resort. Follow the protection: whether the saved place can be secured under the National Parks Act. The leverage lies in the planning gate, the conservation case, the redirection, and the lasting park designation.

Who's Supposed to Be Watching

Bermuda has real watchers: its planning authorities, its parks and conservation bodies, the courts and the Privy Council, and a close, engaged public and press. These are the institutions a case is built to engage — and the deciders a coalition, as at Southlands, is built to move.

QUICK REFERENCE: SUCCESS RATES

Opposition in Bermuda is genuinely achievable — Southlands proved a coalition can move the government even after a development order is granted. The single most decisive move is **building an environmental and community coalition and making the public case**, because Bermuda's government responds to organised, visible public pressure grounded in the conservation and heritage value of a treasured place. The planning process is the entry point; the conservation and heritage considerations are the case; the National Parks Act secures the win. What the tools deliver is often a redirection and a lasting protection — a place saved, a development moved, a park designated — rather than a project stopped outright. And the win, once made, must be defended.

STEP 1: TARGET IDENTIFICATION

Ask five questions. **What is the harm?** — the green space, coast, or heritage site lost, the endemic species and open space paved over. **What clears it?** — the planning permission or special development order. **What is the case?** — the conservation and heritage value, the dwindling open space, the alternative site. **What protection can lock in a win?** — park designation under the National Parks Act. **Who is the coalition?** — the environmental and community groups, the public who love the place. Pick the fight where the conservation and heritage value is clearest and a redirection or protection is reachable — as Southlands was.

STEP 2: DOCUMENTATION — HOW TO BUILD AN UNASSAILABLE CASE

Build the case in layers. **Layer one: the harm and the value** — the site's endemic species, open space, beach, woodland, and heritage, and what the development would destroy. **Layer two: the alternative** — the brownfield or already-developed land that could take the project instead, as Morgan's Point took the Southlands resort. **Layer three: the channel and the protection** — the planning objection to file, the coalition and public case to build, and the park designation to pursue for lasting protection. A case built on the conservation and heritage value of a treasured place — with a credible alternative site — is the one that moved the government at Southlands.

WHAT TO GATHER, AND WHERE TO FIND IT

Gather the **value record**: the site's ecology, endemic species, open space, beach, woodland, and heritage, and the public's attachment to it. Gather the **harm record**: the development order or plan, and what it would destroy. Gather the **alternative record**: the brownfield or developed land that could take the project instead. Gather the **protection record**: the National Parks Act and the path to park designation. Gather the **coalition record**: the environmental and community groups, the public who will lobby and, if warranted, demonstrate. Bermuda's openness and small scale make most of this genuinely obtainable.

STEP 3: BUILDING LOCAL OPPOSITION

Southlands was won by a coalition and a public that lobbied and, for the first time in Bermuda, took to the roadside. Build the same: the **environmental and community groups**, the **residents and public** who treasure the place, the **heritage and conservation voices**, and the **press**. Make the public case for Bermuda's dwindling green spaces, lobby the government, and — where warranted — demonstrate peacefully. In so small and close a territory, a visible, united public is a genuine force that moves the deciders.

STEP 4: PLANNING, CONSERVATION & LEGAL LEVERS — THE ORDER, THE PARK, AND THE COURTS

Set expectations honestly: here the levers are real and were proven at Southlands, though a win may be a redirection rather than a stop, and must then be defended.

The Planning Process and the Development Order

The **planning process and its development orders** are a place to object, challenge, and hold to account. File objections, document the harm and the conservation case, and press for refusal, conditions, or a better

alternative — and know that, as at Southlands, the fight can continue even after an order is granted, toward a redirection.

The Conservation and Heritage Case

Conservation and heritage considerations — endemic species, dwindling open space, beach and woodland, historic value — weigh genuinely in Bermuda's planning decisions and are the heart of the public case. They are what turned Southlands from "an unspoilt jewel" slated for a resort into a place the government chose to save.

The National Parks Act and the Courts

The **National Parks Act and park designation** secure a saved place with lasting protection, as Southlands gained in 2017. And the **courts** — judicial review at home, and an appeal to the Privy Council — are open. Pursued together — the planning gate, the conservation case, the redirection, and the park protection — these levers save treasured places and lock in the win.

TURNING YOUR EVIDENCE INTO ARGUMENTS

Tailor the case to each audience. **For the planning authority:** here is the harm, the conservation and heritage value, and the alternative site. **For the government:** here is a treasured place the public will not see paved, and here is the redirection and the credit for saving it, as at Southlands. **For the parks bodies:** here is a saved place that should gain lasting protection. **For the public and press:** here is Bermuda's dwindling green space, and here is how it was saved before. **The golden rule:** ground the case in the conservation and heritage value, offer a credible alternative, and build the visible public coalition — that combination moved the government at Southlands and can again.

STEP 5: MEDIA STRATEGY

In a small, close territory with an engaged public and press, media matters. Frame the story around **Bermuda's dwindling green spaces and treasured places:** an unspoilt jewel slated for a resort, and a community determined to save it. Carry it through the local press and the community's networks, and make the public case visibly, as Southlands did with its roadside demonstrations. A few cautions: keep it accurate and grounded in the conservation and heritage value; offer the alternative rather than only opposing; and let the value of the place and the credible redirection carry the weight.

EMAILS & LETTERS

Keep every message factual, grounded in the conservation and heritage case, and constructive about the alternative.

8A — To the planning authority: identify the development, the harm, and the conservation and heritage value, and object, with the alternative site.

8B — To the Government of Bermuda: set out the treasured place at stake and press for a redirection and lasting protection, as at Southlands.

8C — To the parks and conservation bodies: flag a site worth saving and ask for the path to park designation.

8D — To an environmental or community group: share the case and invite the coalition.

8E — To a heritage body: document the historic or ecological value at stake and ask for support.

8F — To the public: make the case for the dwindling green space and invite lobbying and, if warranted, peaceful demonstration.

8G — To the developer: propose the brownfield or alternative site, as Morgan's Point took the Southlands resort.

8H — To the press: offer the documented value-and-alternative case and ask for coverage.

IF YOU HAVE LITTLE TIME: THE RAPID-FIRE VERSION

The first 48 hours: find the development order or plan and the objection deadline; write the one-page case (the conservation and heritage value, the harm, the alternative site); file a holding objection. **The fastest-moving levers:** the planning objection, the public case, and the pursuit of a redirection. **Emergency coalition-building:** reach the environmental groups, the residents, and the press first; in so small a territory they mobilise quickly. Throughout, ground everything in the value of the place and offer the alternative.

WHEN THE SYSTEM IS TILTED

Even in an open territory the field can tilt: a development the government favours, an order already granted, a developer with resources. Recognise it, and lean on the levers the tilt cannot reach — the conservation and heritage considerations, the visible public coalition, the credible alternative site, the National Parks Act, the courts and the Privy Council. Southlands proved that even a granted development order can be turned, by a coalition that keeps up the public pressure and offers a way for the government to save face and the place at once. Accept, honestly, that the win may be a redirection, and that even a saved park must be defended.

WHEN IT'S ACTUAL CORRUPTION — AND WHO BENEFITS

Distinguish the ordinary tilt from capture — an order granted against the planning merits, a site handed to an insider, a development steered for private gain. Where capture appears, respond through the open channels Bermuda genuinely provides: the courts and judicial review, the planning and parks bodies, the free press, and the transparency of a small, close community where little stays hidden. **On safety:** Bermuda is a safe, rule-of-law territory; the risks here are political and reputational, not physical, so the work is open, lawful, and public — including peaceful demonstration, as at Southlands — but always accurate and constructive.

INTEGRATION & TIMELINE: RUNNING ALL FIVE STEPS TOGETHER

The steps run in parallel. The documented value and harm feed the planning objection, the public case, and the redirection at once; the coalition organises and, if warranted, demonstrates; the media carries the treasured-place frame throughout. A rough timeline: **weeks one to four**, document the value and harm, file objections, and build the coalition; **months two onward**, make the public case, press the government toward a redirection, and pursue park designation — knowing, as Southlands showed, this may take years; **beyond**, secure and then defend the park protection. The core discipline: grounded in the conservation and heritage value, coalition-built, constructive about the alternative, and prepared for a long defence.

FINAL ASSESSMENT

Opposing a destructive project in Bermuda is genuinely achievable, and Southlands proves it: a community turned a pristine site slated for a luxury resort into a national park, moving the government even after a development order had been granted. This guide has been honest that the win was a land swap rather than an outright cancellation — the resort was built elsewhere — that it took the better part of a decade, and that even a saved park has had to be defended against neglect and renewed debate. But those honest limits do not make the effort futile — they define its shape. A community that builds an environmental and community coalition, makes the public case for Bermuda's dwindling green spaces, uses the planning process and the conservation and heritage considerations, demonstrates peacefully where warranted, and pursues a redirection and lasting park protection can genuinely save a treasured place, as Southlands was saved. The odds here are favourable, the tools are real, and the way was shown.